Waterbear Field School

Participant Waiver, Release & Consent — good for 12 months of Waterbear activities

1. Who and what this covers

This agreement is between the person signing below ("**I**", "**me**") and **Donald Blair dba Waterbear Field School** ("**Waterbear**"). It covers me and every participant I list on this form, including any minor for whom I am the parent or legal guardian ("**Participants**").

"**Activities**" means any Waterbear session, workshop, field day, or meetup, and anything incidental to taking part in one. That includes farm chores, tours, building projects, and arriving at, leaving, and moving around the sites where these take place.

"**Released Parties**" means Waterbear and its owners, instructors, volunteers, and agents, **and** the owners and operators of any site that hosts an Activity, along with their families, employees, and agents. This includes **Hannan Healthy Foods** (Lincoln, MA) and its owners.

2. The risks I understand

Activities take place outdoors and on working farms. They involve real risks, including **serious injury and, rarely, death**. Examples:

- hand tools and power tools, sharp objects, stakes, wire, lumber, and building materials;
- uneven ground, mud, holes, slips, trips, falls, and lifting or carrying;
- farm equipment and vehicles, structures and hoop houses, and water (tanks, barrels, ponds);
- insects (including stings and ticks and the diseases they carry), plants, soil, compost, animals, and allergens;
- weather: sun, heat, cold, wind, rain, and fading daylight;
- the actions of other participants, and the limits of first aid at a rural site.

I take part voluntarily, and I **accept these risks** for myself and the Participants I list.

3. Safety commitments

- Participants will follow the instructions of Waterbear staff and the farm hosts, and will stay out of any area marked off-limits.
- Participants will wear closed-toe shoes and weather-appropriate clothing.
- Children under 14 must have a parent, guardian, or caregiver adult on site for the whole Activity. That adult is responsible for supervising them.
- I will tell Waterbear about any medical condition, allergy, or limitation that could affect a Participant's safety. To my knowledge, each Participant is healthy enough to take part.

4. Release of liability and promise not to sue

In return for being allowed to take part in the Activities, I, for myself, the Participants, and our families, heirs, estates, and assigns, **release, and agree not to sue, the Released Parties** for any present or future claim for property damage, personal injury, or wrongful death arising from the Activities, **including claims caused by the ordinary negligence of the Released Parties**. This release does not cover gross negligence or willful or reckless misconduct.

To the extent the law allows, I also agree to indemnify and hold harmless the Released Parties from claims arising from a Participant's participation, including claims brought on a minor Participant's behalf.

5. Insurance and medical care

Waterbear carries liability insurance and a limited participant accident medical policy. That coverage has deductibles and limits and may not cover every expense. Participants' own health insurance is responsible first. Nothing in this section limits the release above.

If a Participant needs medical attention and I cannot be reached, I authorize Waterbear staff to give first aid and to arrange emergency medical treatment and transport. I accept responsibility for the cost of that care.

6. Photos and media (your choice — this does not affect participation)

Waterbear sometimes takes photos and video at Activities to share on its website, in newsletters, and on social media. Below, I choose whether Participants may appear. If I say yes, I grant Waterbear permission to use those images without payment, and I understand Waterbear will not publish children's full names. I can withdraw this permission for future uses at any time by emailing Waterbear.

7. The fine print

This agreement is governed by Massachusetts law. It is meant to be as broad as Massachusetts law permits. If any part is found invalid, the rest stays in force. It is valid for **12 months** from the date signed and covers all Waterbear Activities during that time. Signing electronically, by typing my name and/or drawing my signature, has the same effect as signing on paper.

I have read this agreement. I understand that by signing it I am giving up legal rights and remedies, including on behalf of the minors I list, and I sign it freely. I am at least 18 years old, and I am the parent or legal guardian of each minor Participant I list.

Signer (adult, 18+)

Full name _____ Email _____

Phone _____ Mailing address _____

Participants (include yourself if you're taking part)

Name	Age (or "adult")	Allergies / medical / other notes

Emergency contact (not attending)

Name _____ Relationship _____ Phone _____

Photos & media (pick one)

☐ Yes, photos and video of the Participants may be used

☐ Yes, but no photos where children's faces can be identified

☐ No photos or video of the Participants, please

☐ Add me to the Waterbear newsletter (optional)

Signature

☐ I am the parent or legal guardian of every minor listed above.

Signature _____ Date _____

Printed name _____ Activity / date (if registering for one) _____

Office use: received by _____ on _____ · entered online ☐ · waiver v2026-10-a